

Subject: AC-2025-LON-004293 — Written Evidence — Order Does Not Address Claim — Formal Position Statement — 9 April 2026

Date: Thursday, April 9, 2026 at 7:04:11 AM British Summer Time

From: Nadia <nadia@rosekross.com>

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Attachments: PositionStatement_JusticeCommittee_9Apr2026 (1).pdf

Dear Justice Committee,

I write as the Claimant in *Zahmoul v Secretary of State for Justice & HMCTS* (AC-2025-LON-004293), a litigant in person managing four parallel High Court proceedings without legal representation.

I am submitting the attached position statement as formal written evidence to the Justice Committee.

This morning, I filed an N244 application for expedition in the Administrative Court, copied to the Committee. The position statement attached to this email sets out in full why the order of Collins Rice J dated 11 March 2026 does not address the claim that was actually brought, and why the current position is constitutionally unacceptable.

The core issue is this. Seven grounds were pleaded. None was addressed. The order answered a different claim from the one filed, certified it as Totally Without Merit, and barred oral renewal. The only available remedy — CPR 3.1(7) — was filed the following day and has remained unanswered for 28 days. Costs are now being enforced under the uncorrected order. The CPR 52.8 appeal window expires on 23 April 2026.

The Claimant's formal position is as follows. There are two and only two acceptable paths forward:

1. Either the Court addresses the claim that was actually brought — engaging with each of the seven grounds as pleaded, including Ground 7, and issuing a determination that is responsive to the administrative law questions raised -
2. or these proceedings are formally stayed to enable the Claimant to instruct a barrister, following which the matter resumes on proper terms.

The position statement sets out the full basis for that position, including two further instances of non-engagement: the refusal of the EX107 transcript application without addressing the grounds advanced, and the recusal application filed on 10 February

2025, which was never listed, never determined, and never the subject of any judicial order.

I am raising this with the Justice Committee because the inequality of arms between a litigant in person and a represented defendant — in a system where paper-only permission decisions can certify complex claims as totally without merit without engaging with the pleaded grounds — is a structural problem that extends well beyond this case.

Yours faithfully,

Nadia Zahmoul Claimant —

Litigant in Person nadia@rosekross.com AC-2025-LON-004293

Attachment: PositionStatement_JusticeCommittee_Signed_9Apr2026.pdf

Nadia Zahmoul
Claimant — Zahmoul v Secretary of State for Justice & HMCTS
High Court (Administrative Court) | Case Ref: AC-2025-LON-004293

Transparency Notice:
A public archive of officially filed, lawfully publishable documents relating
to this Judicial Review is maintained for reference and verification purposes.

Repository: <https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive>

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